

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 9/2/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>McKeown-Trust</u> 30-2024-01421537	MOTION TO STAY (ROA 38) Respondent Puna Nair ("Respondent") moves pursuant to Code of Civil Procedure section 128 and the Fifth Amendment of the U.S. Constitution to stay the instant action until the resolution of her criminal case. The motion is DENIED. Every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action or discovery pending outcome of a related criminal case. (Code Civ. Proc. § 128(a)(3).) A stay is permissible when there are pending civil and criminal proceedings which "arise out of the same or related transactions." (<i>Pacers, Inc. v. Superior Court of San Diego County</i> (1984) 162 Cal.App.3d 686, 690 (<i>Pacers</i>), emphasis added.) "Courts that are confronted with a civil defendant who is exposed to criminal prosecution arising from the same facts 'weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible.'" (<i>Fuller v. Superior Ct.</i> (2001) 87 Cal.App.4th 299, 307, citing <i>Pacers, supra</i>, 162 Cal.App.3d at 690, emphasis added.) The factors to be considered in whether to grant a stay due to pending criminal proceedings are: (1) the extent to which defendants' 5th Amendment rights are implicated; (2) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (3) the burden which any particular aspect of the proceedings may impose on defendants; (4) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (5) the interests of persons not parties to the civil litigation; and (6) the interest of the public in the pending civil and criminal litigation." (<i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 885 ("<i>Avant!</i>"), citing <i>Keating v. Office of Thrift Supervision</i> (9th Cir. 1995) 45 F.3d 322, 324.) Here, the court need not reach the factors set forth in <i>Avant!</i> because Respondent has not shown that the instant probate proceeding and the criminal action arise out of the same or

		related transactions or from the same facts. In support of this motion, Respondent offers a short declaration of counsel which states only that Respondent is facing criminal charges based on "similar factual allegations." (ROA 38, Bohm Decl., ¶ 3, emphasis added.) The Petition (ROA 2) in the instant action alleges causes of action against Respondent for undue influence, financial elder abuse, and intentional interference with expected inheritance. Such causes of action concern Respondent's actions toward the decedent with regard to the decedent's estate plan. The criminal action involves insurance fraud which (presumably) concerns Respondent's actions toward the insurance company with regard to decedent's insurance policy. While the two actions might concern "similar" facts (e.g., they both involve allegations of moral turpitude), Respondent has not shown that they involve the same or related transactions or facts. Furthermore, since Respondent has not offered any information as to the facts involved in the criminal proceeding, the court cannot begin to weigh the first and third factors of <i>Avant!</i> as set forth above. In her Reply, Respondent argues that Petitioner's discovery evidences an overlap between the two actions. However, the discovery appears to seek information relevant to the instant motion to stay. The discovery might also reveal that Petitioner intends to use the evidence obtained in the criminal action in the instant probate proceeding. However, such is not grounds to stay the instant probate proceeding. Respondent also argues in Reply that Petitioner has failed to show prejudice resulting from a stay. However, Petitioner does not have the burden to make such a showing. Moving party bears the initial burden to prove entitlement to the relief requested. (Evid. Code § 500.) Respondent has not met that burden. Counsel for Petitioner is ordered to give notice of this ruling. .
2	<u>Worthy-Trust</u> <u>30-2021-01211884</u>	MOTION TO BE RELIEVED AS COUNSEL (ROA 631) Attorney Stephen P. Shepard seeks to be relieved as counsel for Susan K. Worthy. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, rule 3.1362. When representing an estate representative or other fiduciary,